

**FOR ORDER AUTHORIZING ALTERNATIVE SERVICE OF SUMMONS ON DEFENDANT ANIL YADAV
PURSUANT TO CCP 413.30**

FILED BY: VAN DE POEL & LEVY LLP

TENTATIVE RULING:

Plaintiff has requested leave to serve process on Defendant Anil Yadav (“Anil”) by serving counsel for a company purportedly operated by Defendant Anil, as well as by mailing process documents to the purported residence of Defendant Anil, which has an address in Sunol.

Background

Plaintiff, in their Declaration, notes that they have confirmed the Sunol address as the residence for Defendant Anil “through public records.” There is no further explanation of what this means. Plaintiff describes several unsuccessful attempts of service at this address, but none of these attempts suggest any confirmation that Defendant Anil indeed resides at the address.

Plaintiff also provides exhibits showing a link between Defendant Anil and the company he apparently runs, with the address of the business, as well as email exchanges with the attorneys of this company, who decline to accept service for Defendant Anil.

Analysis

Section 413.30 of the CCP permits a court to allow an alternative method for service of process, but it requires the moving party to show that they’ve made diligent efforts to serve the other party.

That has not happened here.

It is unclear how Plaintiff came up with the Sunol address. Which public records were used to confirm that this address is, in fact, associated with Defendant Anil?

Disposition

Plaintiff’s Application is denied without prejudice.

Plaintiff to file Order.

**10. 9:00 AM CASE NUMBER: L25-14082
CASE NAME: WELLS FARGO BANK, N.A. VS. BRE BRIGGS
FOR JUDGMENT ON THE PLEADINGS
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The moving papers were timely served by mail on the address for Defendant provided in the Answer.

The Declaration reflects Plaintiff's attempt to meet and confer with Defendant prior to filing of this Motion, as required by CCP 439.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits the allegations of the Complaint and offers no defense.

The Complaint alleges a breach of contract, in that Defendant failed to repay a credit loan to Plaintiff in the amount of \$19,223.80. Specifically, the Complaint alleges that Defendant failed to make payments on the contract, that Defendant refuses to pay Plaintiff the amount owed under the contract. Generally, the Plaintiff alleges that they suffered damages.

The agreement, attached to the Complaint, appears to reflect a credit card loan. The agreement reflects terms of acceptance, payment, and payment frequency, as well as consequences for nonpayment. The attachment also includes a document suggesting that the agreement terms were made to Defendant upon her application for the credit card.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Plaintiff also provided an accounting of costs amounting to \$430.

Defendant, in the Answer, admits that all of the statements in the Complaint are true. Though box 3b) is checked, which allows for an exception to the admission, no exception is provided.

The Defendant writes in other parts of the Answer that they are experiencing financial hardship.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, "[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint." *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she "has no

information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint.” CCP 431.30(e).

A judge must deny a plaintiff’s motion for judgment on the pleadings if the defendant’s answer raises any material issue or sets up any affirmative matter constituting a defense. *Allstate Ins. Co. V KimW.* (1984) 160 CA3d 326, 330–331.

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

A court can grant a motion for judgment on the pleadings with leave to amend. CCP 438(h)(1). The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, Defendant admits all of the elements of a breach of contract, the sole cause of action.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is Granted in the amount of \$19,653.80.

Plaintiff to file Order and to provide written notice of the Order to Defendant.

**11. 9:00 AM CASE NUMBER: L26-00135
CASE NAME: WELLS FARGO BANK, N.A. VS. CRISTINA SMITH**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff has submitted a Motion for Summary Judgment, along with accompanying documents.

Defense filed a Response.

Background